

Contract of Sale of Land

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Particulars of Sale

Vendor's estate agent

Name	Nelson Alexander Pty Ltd (Northcote)				
Address	382 High Street, Northcote VIC 3070				
Email	northcote@nelsonalexander.com.au	Ref	NA-NTH-2026-0418		
Tel	(03) 9480 4000	Mob	0412 884 221	Fax	(03) 9480 4099

Vendor

Name	John Andrew Smith and Margaret Louise Smith
Address	42 Acacia Avenue, Northcote VIC 3070
ABN/ACN	
Email	jm.smith@example.com.au

Vendor's legal practitioner or conveyancer

Name	Coulter Legal				
Address	Level 3, 200 Malop Street, Geelong VIC 3220				
Email	conveyancing@coulterlegal.com.au	Ref	CL-26-0418-SM		
Tel	(03) 5273 5273	Mob	0431 552 110	Fax	(03) 5273 5274

Purchaser's estate agent

(not applicable — purchaser unrepresented by an agent)

Purchaser

Name	David Wei Chen and Emily Jane Chen
Address	7/14 Station Street, Fairfield VIC 3078
ABN/ACN	
Email	chenfamily2026@example.com

Purchaser's legal practitioner or conveyancer

Name	Maddocks				
Address	Level 27, 140 William Street, Melbourne VIC 3000				
Email	property@maddocks.com.au	Ref	MAD-2026-CHEN-042		
Tel	(03) 9258 3555	Fax	(03) 9258 3666	DX	DX 259 Melbourne

Land (general conditions 7 and 13)

The land is described in the table below –

Certificate of Title reference	being lot	on plan
Volume 10234 Folio 567	1	PS812345K
Volume Folio		

Volume	Folio		
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The land includes all improvements and fixtures.

Property address

42 Acacia Avenue, Northcote VIC 3070

Goods sold with the land (general condition 6.3(f))

Fixed floor coverings, window furnishings and light fittings as inspected; Bosch dishwasher; Westinghouse oven and cooktop; Daikin split-system air conditioners (×3); garden shed; clothes line; TV wall mount in lounge.

Payment

Price	\$1,285,000.00			
Deposit	\$128,500.00	by	05/05/2026	of which \$5,000.00 has been paid
Balance	\$1,156,500.00			payable at settlement

Deposit bond

☐ General condition 15 applies only if the box is checked.

Bank guarantee

☐ General condition 16 applies only if the box is checked.

GST (general condition 19)

Subject to general condition 19.2, the price includes GST (if any), unless the next box is checked.

☐ GST (if any) must be paid in addition to the price if the box is checked.

☐ Sale of land on which a 'farming business' is carried on (s 38-480 GST Act).

☐ Sale of a 'going concern'.

☐ Margin scheme will be used to calculate GST.

Settlement (general conditions 17 & 26.2)

is due on 30/06/2026

Lease (general condition 5.1)

☐ At settlement the purchaser is entitled to vacant possession of the property unless the box is checked, in which case the property is sold subject to:

☐ a lease for a term ending on _____ with _____ options to renew, each of _____ years

☐ a residential tenancy for a fixed term ending on _____

☐ a periodic tenancy determinable by notice

Terms contract (general condition 30)

☐ This contract is intended to be a terms contract within the meaning of the Sale of Land Act 1962.

Loan (general condition 20)

☒ This contract is subject to a loan being approved and the following details apply if the box is checked:

Lender	Commonwealth Bank of Australia		
(or another lender chosen by the purchaser)			
Loan amount: no more than	\$900,000.00	Approval date	26/05/2026

Building report

☒ General condition 21 applies only if the box is checked.

Pest report

☒ General condition 22 applies only if the box is checked.

Signing of this Contract

WARNING: THIS IS A LEGALLY BINDING CONTRACT. YOU SHOULD READ THIS CONTRACT BEFORE SIGNING IT.

Signed by the Purchaser

(electronic signature — D. Chen / E. Chen)

Dated	21/04/2026
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Print name(s)	David Wei Chen; Emily Jane Chen
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Authority	
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This offer will lapse unless accepted within [**3**] clear business days (3 clear business days if none specified).

Signed by the Vendor

(electronic signature — J. Smith / M. Smith)

Dated	22/04/2026
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Print name(s)	John Andrew Smith; Margaret Louise Smith
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Authority	
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DAY OF SALE: 22/04/2026 (date by which both parties have signed).

Special Conditions

1. **Subject to finance (extends GC 20).** This contract is subject to the purchaser obtaining unconditional loan approval from the Commonwealth Bank of Australia for not less than **\$900,000.00** by **26/05/2026**. If approval is not obtained by that date the purchaser may end this contract by written notice accompanied by written evidence of non-approval.
2. **Building and pest reports (extends GC 21, 22).** The purchaser may end this contract within 14 days of the day of sale if a report from a registered building practitioner or licensed pest control operator discloses a major defect or major infestation as defined in those general conditions.
3. **Vendor's disclosure & Section 32 statement.** The purchaser acknowledges receipt of a section 32 statement prior to signing, including a copy of the register search statement, copy of plan PS812345K, council rates certificate, owners corporation certificate (if any), and water information statement.
4. **Owners corporation.** The property is *not* affected by an owners corporation.
5. **GST.** The sale is of established residential premises and input-taxed. No amount on account of GST is payable in addition to the price.
6. **Foreign resident capital gains withholding (GC 24).** The vendor will, at least 5 business days before settlement, deliver a current ATO clearance certificate covering the settlement date.
7. **GST withholding (GC 25).** The vendor warrants that the property is *not* new residential premises or potential residential land and the purchaser will not be required to pay an amount under section 14-250 of Schedule 1 to the Taxation Administration Act 1953 (Cth).
8. **Electronic settlement (GC 18).** Settlement will be conducted electronically via PEXA. Each party will be, or will engage, a subscriber.
9. **Nominee (GC 4).** The purchaser may nominate a substitute or additional transferee no later than 14 days before the due date for settlement. Any such nomination must be to a related entity only; the named purchaser remains personally liable.
10. **Pre-settlement inspection (GC 29).** Two pre-settlement inspections permitted, the last being no earlier than 48 hours before settlement, arranged through the vendor's agent.

General Conditions

The general conditions of this contract are the standard general conditions 1 – 35 published by the Law Institute of Victoria Limited and the Real Estate Institute of Victoria Ltd in August 2019 (ELIV100A), incorporated by reference. They govern, without limitation: electronic signature, liability of signatory, guarantee, nominee, encumbrances, vendor warranties, identity of land, services, consents, transfer and duty, release of security interest, builder warranty insurance, general law land, deposit, deposit bond, bank guarantee, settlement, electronic settlement, GST, loan, building report, pest report, adjustments, foreign resident capital gains withholding, GST withholding, time and co-operation, service, notices, inspection, terms contract, loss or damage before settlement, breach, interest, default notice and default not remedied.